

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C23-02013
CASE NAME: DENNIS SANFORD VS. CHANNEL LUMBER CO.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY**
FILED BY: CHANNEL LUMBER CO.
TENTATIVE RULING:

This hearing date was initially set on defendants' motion to Compel further deposition testimony by GRS Funding, Inc. The hearing was advanced and a ruling made. See Order entered June 24, 2026. This hearing date is VACATED.

18. 9:01 AM CASE NUMBER: C24-02971
CASE NAME: ROBERT HARELSON, II VS. ROBERT HARELSON
***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEFENDANT ROBERT W. HARELSON'S**
DEPOSITION AND ANSWERS TO DEPOSITION QUESTIONS
FILED BY: HARELSON, ROBERT J, II
TENTATIVE RULING:

Plaintiff Robert J. Harelson II ("Plaintiff") filed a motion to compel Robert W. Harelson's ("Defendant") further deposition testimony and request for sanctions on June 11, 2026 (the "Motion to Compel Further Deposition"). The Motion to Compel Further Deposition was set for hearing on September 21, 2026. The motion is opposed.

Background

Plaintiff served an Amended Notice of Deposition on Defendant on March 23, 2026. See Declaration of Craig A. Diamond filed June 11, 2026 (the "Supporting Declaration"), ¶4 and **Exhibit B** thereto. This notice identified 28 requests for production (the "Requests"). *Id.*

Most of the Requests seek broad categories of document production. Supporting Declaration, **Exhibit B**. Many contained multiple subparts, while others are extraordinarily broad and impermissibly vague. See e.g. Request No. 28 ("All Documents reflecting any effort to rewrite history, including ..."), Supporting Declaration, **Exhibit B**.

Plaintiff complains that "more than 1,700 pages of documents" were produced at the deposition which were not identified by request number "as required" under the discovery statutes. Plaintiff seeks an order compelling Defendant to sit for a further deposition so that Defendant can be further examined about the documents produced.

Sanctions in the amount of \$2,958.00 are also requested.

Opposition papers were filed on September 8, 2026.

Reply papers were filed on September 10, 2026.

Analysis

A motion to compel further deposition testimony must be accompanied by a declaration under Code of Civil Procedure section 2016.040. Code Civ. Proc. § 2025.450(b)(2) and 2025.480(b).

Code of Civil Procedure section 2016.040 mandates that “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” Code Civ. Proc. § 2016.040(a) (emphasis added).

Plaintiff’s motion is procedurally defective because no declaration was provided showing that any meet and confer efforts occurred in person, by telephone, or by videoconference. **The only meet and confer efforts referenced were by written correspondence.** The moving party describes email correspondence and attached a meet and confer sent to the other side before the motion was filed. See Supporting Declaration, ¶5 and **Exhibit C** thereto.

To the extent that Plaintiff’s motion turns on any asserted deficiency in the manner of the responding party’s production of documents in response to the subject document production requests, the motion is also procedurally deficient because of the failure to file a Separate Statement. See Rule 3.1345(a)(4) and (5) of the California Rules of Court (CRC).

For these reasons alone, the motion must be denied.

Nonetheless, even if not procedurally defective, the Court would deny the motion.

Defendants contend the 1,700+ pages of documents at issue were produced more than a week before the deposition on May 19, 2026. See Declaration of Melisa Recendez filed September 8, 2026 (“Opposition Declaration”) ¶20 (“...Defendants explained that the ‘discovery dump’ of 1,705 pages were produced ahead of the deposition were identical to the documents produced in discovery on May 11, 2026.”) and ¶24.

Plaintiff asserts that the documents did not arrive until the day of the deposition, in the form of a mailed thumb drive. See Supporting Declaration, ¶9.

Nonetheless, Plaintiff’s counsel was plainly advised as early as May 11, 2026 that the documents were en route on a thumb drive. See Opposition Declaration, ¶7 and **Exhibit 5** thereto, Email dated May 11, 2026 at 2:46 pm (“A flash drive with the produced documents is also being mailed to your office.”).

If more time were needed because that was a problem and the thumb drive would not arrive sufficiently in advance of the deposition to review them, Plaintiff could have requested a continuance of the deposition. Yet, Plaintiff elected to proceed with the deposition.

Perhaps more importantly, Plaintiff ignores the obvious. There is simply no obligation to produce documents demanded in a deposition notice in advance of a deposition. Rather, the documents must be produced at the deposition. Code Civ. Proc. §§ 2025.220 and 2025.280; see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) (“Weil & Brown”) § 8:521-8:521.1. Indeed, Weil & Brown cautions against seeking production of documents by deposition notice if the documents are anticipated to be voluminous. *Id.* at § 8:521.1.

In addition, the Court has considered and rejects the contentions that manner of production of the documents at the document somehow requires the relief sought. First, the motion is procedurally defective to the extent such an argument is made by Plaintiff, as noted above. To the extent that Plaintiff seeks to rely on arguments about the nature and manner of responses to particular document production requests or the insufficiency of any particular answers by the deponent, a Separate Statement is required. CRC 3.1345(a)(4) and (5). No such Separate Statement was ever filed by Plaintiff.

Even if the Court were inclined to embark on evaluating the sufficiency of the responses to the document production requests, it is evident that, as noted above, many of the requests themselves were substantially overbroad and, therefore, improper. Code Civ. Proc. § 2025.220(a)(4) (deposition notice

must specify “with **reasonable particularity** of any materials or category of materials, including any electronically stored information, to be produced by the deponent”); see Weil & Brown, § 8:523.

Even if the requests were all proper, the provision of the Code of Civil Procedure cited by Plaintiff, Section 2025.280, does not require that documents produced at a deposition, pursuant to a notice of deposition, be organized in any particular manner, other than to require that a party producing ESI must provide “a means of gaining direct access to, or a translation into a reasonably usable form of, any electronically stored information that is password protected or otherwise inaccessible.” See Code Civ. Proc. § 2025.280.

Plaintiff’s brief states:

Code of Civil Procedure § 2025.280 requires: “Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond.”

See Plaintiff’s Memorandum of Points and Authorities filed June 11, 2026, p. 6, Ins. 5-7.

Code of Civil Procedure section 2025.280 contains no such language. Plaintiff is admonished for misrepresenting the language of the statute.

Accordingly, the Court does not find any grounds to compel a further deposition by Defendant.

Lastly, the Court notes that the record provided on this motion demonstrates instances of inappropriate and unprofessional conduct on the part of the examining attorney, Craig A. Diamond. Counsel is admonished to refrain from such conduct in the future. See e.g. Transcript of Videotape Zoom Deposition of Robert W. Harelson, 163:18-20 (“Q why don't you weigh in as a trustee? [¶] A I'm a dad. [¶] Q Barely.”), Opposition Declaration, **Exhibit 9**.

Sanctions

The moving party persisted in prosecuting the Motion to Compel Further Deposition without substantial justification based upon procedurally defective moving papers.

The Court finds that the moving party’s conduct constituted making a motion to compel discovery unsuccessfully and without substantial justification, pursuant to Code of Civil Procedure section 2023.010(h).

The Court finds that the foregoing conduct by the moving party constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In unsuccessfully making this motion, the Court finds that the moving party did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of monetary sanctions unjust.

Disposition

The Court finds and orders as follows:

1. The Motion to Compel Further Deposition is **DENIED**.
2. **Determination of Monetary Sanctions.** In order to assess and fix the reasonable expenses, including attorney’s fees or other costs, incurred by Defendant as a result of the foregoing conduct by the moving party (the “Monetary Sanctions”), the Court makes the following orders:
 - a. **Defendant’s Supplemental Declaration regarding Monetary Sanctions.** Within **thirty**

(30) days of notice of entry of this order, Defendant shall file and serve a declaration signed under penalty of perjury setting forth any and all reasonable expenses, including attorney's fees or other costs, incurred by Defendant as a result of the above discovery misconduct (the "Supplemental Declaration regarding Monetary Sanctions"). Such submittal shall include any supporting billing statements.

- b. **Contents and Length of Supplemental Filing.** Defendant's Supplemental Declaration regarding Monetary Sanctions shall not exceed 5 pages, excluding any evidentiary attachments such as supporting attorney billing statements or other documentation of reasonable expenses. Any redaction of billing statements regarding privilege issues should be as minimal as possible in order to facilitate the Court's review and consideration of the scope of legal services provided.
- c. **Meet and Confer.** Within fourteen (14) days after service of Defendant's Supplemental Declaration regarding Discovery Monetary Sanctions, the parties shall meet and confer, in good faith, to attempt to resolve the issue of the Monetary Sanctions.
- d. **Moving Party's Response.** If not resolved by the meet and confer process, within thirty (30) days after service of the Defendant's Supplemental Declaration regarding Discovery Monetary Sanctions, Plaintiff shall file and serve any further declaration and/or other briefing paper regarding the Monetary Sanctions sought.
- e. **No Reply.** No further reply papers shall be submitted regarding the issue of the Monetary Sanctions.
- f. **Further Hearing.** The issue of Monetary Sanctions shall be set for further hearing on **November 16, 2026, 9:00 am, in Department 34** of the Court. The parties are admonished to consult any tentative ruling published by the Court in advance of the hearing and to abide by the tentative ruling procedures. See Local Rule 3.43. The Court reserves jurisdiction regarding the determination and imposition of the Monetary Sanctions.

3. The Court shall issue the order after hearing.

19. 9:01 AM CASE NUMBER: C25-02355

CASE NAME: HEATHER SILVIA VS. KAISER FOUNDATION HOSPITALS

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: KAISER FOUNDATION HOSPITALS

TENTATIVE RULING:

Defendants Kaiser Foundation Hospitals and Kaiser Foundation Health Plan, Inc. ("Defendants") filed a motion to compel further responses to requests for production of documents propounded upon plaintiff Heather Silva ("Plaintiff") and for monetary sanctions on April 14, 2026 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on September 21, 2026.

Background

The discovery requests at issue in the Motion to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. Defendants' Requests for Production of Documents, Set One (the "**RPDs**") Nos. 52 and 53.